
Appeal Decision

Site visit made on 11 August 2026

by **J Bowyer BSc(Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6006496

Little Brook Farm, 15e Reigate Road, Sidlow, Surrey RH2 8QH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr I Jones, Green Heritage Group against the decision of Reigate and Banstead Borough Council.
 - The application Ref is 25/00197/F.
 - The development proposed is 'construction of x2 agricultural buildings'.
-

Decision

1. The appeal is dismissed.

Preliminary Matter

2. The Government published a revised version of the National Planning Policy Framework ('the Framework') in August 2026. The main parties have had the opportunity to address the change in written comments and I have determined the appeal having regard to the comments received and the updated Framework.

Main Issues

3. The main issues are:
 - i) the effect of the proposal on ecology;
 - ii) the effect of the proposal on the character and appearance of the area;
 - iii) the effect of the proposal on highway safety;
 - iv) whether or not the proposal would be inappropriate development in the Green Belt; and
 - v) whether or not the proposal would make adequate provision for biodiversity net gain.

Reasons

4. The appeal proposes two agricultural buildings on part of a field located to the rear of a cluster of former agricultural buildings which have been converted to residential use. The appellant indicates that the proposal would provide storage for produce from an existing farm operation including a yield of haylage, silage and maize. At appeal stage, they also refer to 40 head of sheep presently grazing at the farm and the lack of a barn to house them in the over wintering period.

Ecology

5. Table 6.11 of the appellant's Preliminary Ecological Appraisal Report ('PEAR') sets out an assessment of the likelihood of occurrence of protected ecological features

and species on site, potential impacts due to the proposed development and recommendations for appropriate mitigation measures. It states that breeding birds were not identified on site and suggests that the development will not result in any loss of suitable habitat for breeding birds.

6. However, Surrey Wildlife Trust advise that there is habitat within the site which could be suitable for notable bird species including Skylark and refer to information indicating that Skylark may be breeding locally. Skylark are listed as a species of principal importance under Section 41 of the Natural Environment and Rural Communities Act 2006 and are included on the red list of Birds of Conservation Concern.
7. The PEAR does not specifically discuss Skylark and the appellant has provided no other compelling evidence to dispute the potential suitability of habitat on the site for Skylark or other notable bird species. Moreover, while the PEAR suggested that breeding birds were not identified on site, it refers only to a site survey visit on a single day in December 2024. Given the time of year which would be outside of breeding and nesting season and the single visit carried out, I am not satisfied that there is sufficient robust information to demonstrate that notable bird species including Skylark would not be using the site.
8. Circular 06/2005¹ sets out that it is essential that the presence or otherwise of protected species, and the extent that they may be affected by proposed development is established before planning permission is granted. For the reasons above, I consider that there is a reasonable likelihood that notable bird species including Skylark could be present and affected by the proposal and there is insufficient evidence to demonstrate otherwise. In the absence of a suitably robust assessment, it is also unclear to what extent development on the site might displace or otherwise affect notable bird species including Skylark, both during construction and operational phases, noting that it would occupy a reasonable area of the site. Nor can I be sure that any adverse effects could be suitably and effectively mitigated.
9. The Circular is clear that ecological surveys should only be left to planning conditions in exceptional circumstances. I have no firm evidence that any such circumstances would apply here. I further cannot be confident that any necessary mitigation or compensation measures to address effects of the proposal could be properly secured and would be effective. In view of the uncertainty and the evidence before me, I am not satisfied that these matters could be appropriately deferred to planning conditions.
10. Furthermore, the PEAR refers to the area of deciduous woodland to the south of the appeal site as 'ancient woodland', with the woodland also shown as a priority habitat on mapping within the appendices. The proposal does not specify that there would be any requirement to remove trees. However, the buildings and hardstanding would sit relatively close to the woodland.
11. I note construction management measures proposed in the PEAR including use of protective barriers around the construction zone, and the Council has suggested a condition referring to tree protection measures during construction. However, there could be longer term impacts resulting from the presence of built development in proximity to trees and their root protection areas. In the absence of substantive

¹ Biodiversity and geological conservation – statutory obligations and their impact within the planning system

arboricultural information to demonstrate otherwise, I can have little confidence that the proximity of the development to trees would not be detrimental to their health and longevity, with consequent detriment to the woodland habitat. It would not be appropriate to defer assessment of such matters to a planning condition given that I cannot be confident that effects would ultimately be acceptable. Moreover, having referred to the woodland as 'ancient woodland' in their evidence, the appellant has not disputed that the development would sit partly within a 15m buffer which Surrey Wildlife Trust highlight should be provided to ancient woodland in accordance with standing advice.

12. Given these factors and the information before me, I am not satisfied that there is sufficient basis to determine that the proposal would not harm priority habitat, or ancient woodland which the Framework advises is irreplaceable habitat.
13. For these reasons, I find that there is insufficient robust evidence to conclude that the proposal would not cause unacceptable harm to ecology through adverse effects on protected species and priority habitat. The proposal would be contrary to Policy NHE3 of the Development Management Plan 2019 ('the DMP') insofar as it requires an assessment of existing trees and landscape features and seeks retention of trees and woodland.
14. Although not cited in the Council's reason for refusal, the proposal would also be contrary to Policy NHE2 of the DMP which is referenced in the Council's officer report and which advises that development is expected to retain and enhance valued priority habitats and features of biodiversity importance.

Character and Appearance

15. There are a number of clusters of buildings along Reigate Road near to the appeal site, but these are typically dispersed and set within surrounding open fields and blocks of woodland which provides for a generally rural character to this part of the countryside. Insofar as the appeal site includes a predominantly open field and woodland parcel to the rear of a cluster of buildings close to Reigate Road, it contributes to the generally rural character and appearance of the area.
16. The proposed buildings would be reasonably large, but their height, scale and simple overall form would not be inconsistent with agricultural structures that are typically found within the countryside. The Council also comments that the proposed use of timber boarding would be appropriate and I have no firm reason to take a different view.
17. However, while I therefore find that the buildings themselves would not be uncharacteristic, they would be positioned significantly behind the closest clusters of development along Reigate Road, and would extend some way into the field parcel such that they would appear somewhat set apart. Together with the generous hardstanding around the buildings, there would be a notable and awkward incursion of built form into open countryside. Despite the set back from Reigate Road, the significant height and scale of the buildings means that there would be likely to be some appreciation from the road of their presence and the encroachment of development into the landscape. The Council has not highlighted any other public views and I consider that the visual impact would be localised. Nevertheless, there would be some detriment to the open and rural character and appearance of this part of the area.

18. Furthermore, I have noted above that there is insufficient information to determine that development would not adversely affect the health and longevity of trees within the woodland parcel on the site in the long term. Loss or harm to these trees which contribute to the rural quality of the area would further exacerbate the harm that I have identified.
19. Even if I were to accept the appellant's assertion that there is an immediate need for the proposed agricultural buildings, it is still important to ensure that development, including for agriculture, does not detract from the qualities of an area. Furthermore, the conversion of former agricultural buildings on the wider site to dwellings means that the site would not benefit from permitted development rights for the erection of an agricultural building but even if it did, such rights are subject to a prior approval process including in respect of the building's siting, design and appearance. That there are permitted development rights for agricultural development is not therefore compelling evidence that the proposal would be acceptable.
20. For the reasons given above, I conclude that the proposal would cause some harm to the character and appearance of the area. Given that the development would not in itself be uncharacteristic, the harm would be relatively limited. It would also be localised. Nevertheless, the harm would be contrary to Policy DES1 of the DMP which includes requirements broadly for development to respect and make a positive contribution to the character of its surroundings.

Highway Safety

21. The development would be accessed from the A217 Reigate Road. Given speeds on this part of the road which is subject to a 50mph limit, the Council advises that visibility splays of 2.4m by 160m should be provided at the access.
22. The appellant has not disputed that this would be the appropriate visibility splay here. They suggest that the requested visibility splays could be secured by condition, but from the evidence before me, it is unclear that suitable visibility splays could be achieved, and certainly not within land that is within the control of the appellant and/or highway land and without a requirement to cross any third party land.
23. In light of the uncertainty around the achievability of visibility splays I am not satisfied that it would be reasonable or appropriate to defer requirements to demonstrate visibility to a planning condition, nor that such a condition would be reasonable or enforceable if third party land were affected.
24. Insofar as I am unable to determine that there would be suitable visibility at the access, the proposal would therefore result in potential for conflict between vehicles leaving the site and other users travelling along Reigate Road.
25. I acknowledge that the development would utilise an existing access which the appellant advises serves a working farm unfettered by condition. However, the proposal would introduce two reasonably large buildings to the site. While the appellant asserts that storage of agricultural produce would not, by itself, result in an increase in trip generation compared to outdoor storage or temporary bins or silos, I did not observe any such storage at my visit and given that the appellant advises that the development is required to provide storage which is not otherwise available, it seems to me that the proposal could well support increased agricultural

activity at the site in practice. Such activity could reasonably be expected to increase the use of the existing access by agricultural traffic in comparison to the current situation. Indeed, the appellant's own evidence suggests that agricultural buildings used for storing machinery, hay and farm equipment can generate around 25 daily trips. While this may well be seasonal and dependent on farming practices, I am not persuaded from the evidence that is before me in this appeal that the proposal would not result in a meaningful increase in the level of use of the access from Reigate Road.

26. The Local Highway Authority has commented on the appeal that concerns which had been raised about vehicles entering and leaving the site in forward gear have been addressed and I am satisfied that there would be adequate space within the site for turning.
27. Nevertheless, while the proposal may utilise an existing highway access, it has not been demonstrated that suitable standards of visibility could be achieved and I find that increased use of this access under the proposal would increase potential for conflict between vehicles exiting the appeal site and other users of Reigate Road.
28. I conclude that this would cause unacceptable harm to highway safety and the proposal would be contrary to the Framework insofar as its Policy TR6 states that development proposals should be refused if they would have an unacceptable impact on highway safety.
29. The Council's reason for refusal also referred to conflict with Policy NHE3 of the DMP but this relates to protection of trees, woodland areas and natural habitats. I do not identify conflict with Policy NHE3 in respect of this reason for refusal. However, the proposal would be contrary to Policy TAP1 of the DMP which is not cited in the reason for refusal but which is referred to in the Council's officer report and which includes requirements for development to provide safe and adequate access for all road users including with regard to visibility splays.

Whether Inappropriate Development

30. The appeal site is located within the Green Belt where the Framework provides that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. The Framework identifies that development is inappropriate unless it falls within one of the categories in Policy GB7. These categories include development which is for agriculture, horticulture and forestry.
31. The Council has raised concern that there is insufficient information to demonstrate a need for barns of the size proposed. I also note a query over whether all of the land within the blue line on the location plan is farmed by the appellant and a suggestion that a parcel to the south is owned by Surrey County Council and farmed by a neighbouring property. However, the Council refers to previous applications on the appeal site as having established that it has been part of an agricultural unit for many years, and it has not provided any compelling evidence to demonstrate that the use of the buildings would not be for agriculture as the appellant indicates.
32. Moreover, the Framework does not specify any requirement that development for agriculture is 'reasonably necessary', and nor have I been directed to any local policy or guidance outlining such a requirement. The scale of the buildings would

appear to me to be generous relative to the suggested space requirements, but I am satisfied from the information before me that the indicated use for the storage of produce and housing of sheep as well as storage of equipment, fertiliser and pesticide would be development for agriculture. The proposal would therefore be a category of development that Policy GB7 of the Framework indicates is not inappropriate in the Green Belt.

33. I therefore conclude that the proposal would not be inappropriate development in the Green Belt. In accordance with the Framework, it should not therefore be regarded as harmful to the Green Belt or be required to demonstrate very special circumstances. The Council has not alleged conflict with any policy of the development plan in respect of Green Belt and nor do I identify any.

Biodiversity Net gain

34. Schedule 7A of the Town and Country Planning Act 1990 (as amended) ('the Act') outlines a general biodiversity condition which is deemed to apply to every planning permission granted and which effectively mandates a requirement for 10% biodiversity net gain ('BNG') unless exemptions or transitional provisions apply.
35. The appellant's evidence indicates that the development would result in a net loss of 0.7 habitat units. While information submitted prior to the Council's decision suggested that solutions to achieve 10% BNG could include enhancing retained farmland and planting native trees or orchard-type planting, the appellant clarified at appeal stage that the proposal does not seek to make an on-site contribution and nor would it be appropriate to do so as this is an existing working farm. Their evidence instead includes reference to credits, although supporting detail is limited.
36. Moreover, the Council notes that the site boundary adjoins the River Mole which is identified on the statutory main river map and which is considered to have at least a high distinctiveness. While the indicated development may be set apart from the riparian zone which is the area within 10m of each bank top, the Council highlights provision in the Statutory Biodiversity Metric User Guide that where a site boundary crosses into the riparian zone, both the riparian zone and the adjacent watercourse should be scoped into the BNG metric calculations which necessitates undertaking a River Condition Assessment. The riparian zone and watercourse have not been addressed in the appellant's evidence or included in the BNG metric calculations. I have noted a suggestion in a letter dated 17 June 2025 from Roavr Group to the appellant that the red line boundary could be reduced. However, the plans that are before me in this appeal show the site boundary extending up to the River Mole. The appellant has not disputed that this relationship would necessitate assessment of river units in the calculation of BNG.
37. That said, while assessment of watercourse units would be likely to affect the BNG baseline, the position of the development well away from the riparian zone means that I would not expect the development to have any effect on this habitat.
38. Moreover, any permission granted would be subject to the statutory biodiversity gain condition and could not begin until a Biodiversity Gain Plan, which should include the pre-development biodiversity value of the on-site habitat, has been approved in writing. I am also mindful of the Government's Planning Practice Guidance which advises that it would generally be inappropriate to refuse an application on grounds that the biodiversity gain objective will not be met.

39. In this case, given that the appellant indicates that BNG would be achieved through credits and in the absence of compelling evidence to suggest that purchase of credits would not offer a realistic option to achieve the mandatory BNG, I am not persuaded that the biodiversity gain condition would be incapable of being discharged nor that the biodiversity gain objective could not be met.
40. Accordingly, I conclude that the proposal could make adequate provision for BNG to satisfy the requirements of Schedule 7A of the Act. It would also accord with Policy NHE2 of the DMP insofar as it requires that development is designed, wherever possible, to achieve a net gain in biodiversity.

Other Matters

41. The appellant indicates that they are disappointed in the time that the Council took to determine the application and that permission was refused. They also highlight errors in the Council's reasons for refusal. However, these are not matters which alter my assessment of the planning merits of the proposal.

Planning Balance

42. I have found that the proposal would not be inappropriate development in the Green Belt and that it could make adequate provision for BNG. However, there is insufficient robust evidence to conclude that the proposal would not result in unacceptable harm to ecology through adverse effects on protected species and priority habitat. The proposal would also cause unacceptable harm to highway safety and some, albeit limited and localised, harm to the character and appearance of the area. The proposal is contrary to Policies NHE3 and DES1 of the DMP and I find taking these matters together that the proposal would conflict with the development plan when it is read as a whole.
43. Policy S5 of the Framework which concerns development outside settlements outlines certain forms of development which should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework. The specified forms of development include development for agriculture.
44. However, part (2) of policy S5 indicates that the circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by adverse effects include where the proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances. In this case, I note that Framework Policy N6 sets out that proposals which would entail the loss or deterioration of irreplaceable habitats, which would include ancient woodland, should be refused, unless there are wholly exceptional reasons and a suitable compensation strategy exists. I have been unable to determine that there would not be detriment to ancient woodland and have no compelling evidence that there would be wholly exceptional reasons or compensation for any loss or deterioration. In any event, I have identified that the proposal would fail to comply with Framework Policy TR6.
45. The proposal would additionally be contrary to national decision-making policies in the Framework requiring that adverse impacts on biodiversity are minimised and seeking consideration for landscape character and development that integrates with and enhances its surroundings.

46. On the other hand, I acknowledge support in the Framework for the sustainable growth of businesses in rural areas including through development and diversification of agricultural enterprises and development to maintain and enhance farm viability and sustainability and domestic food production. However, I consider that these benefits would be modest given the relatively limited scale of the proposal.
47. In my assessment, the limited benefits of the proposal would be substantially outweighed by the cumulative adverse effects. Policy S5 of the Framework does not therefore indicate that the development should be approved.

Conclusion

48. For the reasons given above, I find that the proposal would conflict with the development plan when it is read as a whole, and material considerations do not indicate that a decision contrary to the development plan should be reached. I therefore conclude that the appeal should be dismissed.

J Bowyer

INSPECTOR